

Smt. Sujatha Bai vs G.Hemanth Kumar on 17 February, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

FAMILY COURT APPEAL No.215 of 2017

DATE OF JUDGMENT: 17.02.2026

Between:

xxxxxxx

Appellant.

AND

xxxxxxx

Respondent.

This Court made the following:

JUDGMENT (Per Hon'ble Sri Justice K.Lakshman)

Heard Mr.L.Anand, learned counsel representing Mr.P.Nagender Reddy, learned counsel for the appellant. Even today, there is no representation on behalf of the respondent.

2. We have perused the record.

3. This appeal is preferred by the appellant/wife challenging the order dated 15.02.2017 in F.C.O.P.No.1906 of 2013 passed by the learned Judge, Family Court, Rangareddy District at L.B.Nagar.

4. Appellant is the wife and respondent is the husband. Their marriage was performed on 22.10.2009. The said marriage was consummated and out of the wedlock, they were blessed with two sons. Thereafter, respondent/husband has filed the aforesaid petition under Section 9 of the Hindu Marriage Act, 1955 against the appellant/wife seeking restitution of conjugal rights contending that the appellant implicated him in criminal case for the offences punishable under Sections 498A and 324 of IPC and Sections 3 and 4 of the Dowry Prohibition Act, 1961 and also a petition under Section 125 of Cr.P.C. seeking maintenance. Respondent used to work in Railways

and appellant has addressed a letter to Divisional Railway Manager to take action against the respondent. He has also made an allegation that the family members of the appellant man-handled him. He came to know that she gave his elder son to her brother, Lakshmi Narayana and younger son is suffering from allergy. He tried to contact the appellant, but she did not respond. The legal notice sent by him to the appellant was returned unserved with an endorsement 'not in village'. To his surprise, she got issued legal notice on 09.12.2013 stating that she is residing in Peddapalli itself. Therefore, he has filed the aforesaid petition under Section 9 of the Hindu Marriage Act, 1955.

5. To prove his claim, respondent examined himself as PW.1 and he has filed Exs.P.1 to P.16 documents. However, appellant did not examine any witness and she did not exhibit any documents.

6. On consideration of the entire evidence, both oral and documentary, vide the impugned order dated 15.02.2017, learned Family Court allowed the said O.P. directing the appellant to join the respondent herein for matrimonial life within one month from the date of order. Challenging the said order, appellant/wife preferred the present appeal. This Court did not grant interim stay of the impugned order in the present appeal. However, this Court directed both the parties to appear before the Court.

7. As discussed supra, both the parties were blessed with two children out of their wedlock. Appellant/wife is aged about 28 years and respondent/husband is aged about 37 years as on the date of filing of the said O.P. Presently, they are aged about 40 years and 49 years old respectively.

8. Perusal of record would reveal that the respondent has obtained decree of divorce with mutual consent with his first wife vide Ex.P.1 decree. Appellant is respondent's second wife.

9. It is the specific contention of the respondent herein that appellant demanded him to give their first son to her brother, namely, Lakshmi Narayana as he is not having children. Further, she has not examined any witness to disprove the claim of the respondent and she did not file any documents. Thus, on consideration of the said aspects only, vide the impugned order dated 15.02.2017, learned Family Court allowed the aforesaid F.C.O.P. filed by the respondent. There is no error in it. Appellant herein failed to make out any case to interfere with the impugned order.

10. In the light of the same, this appeal is liable to be dismissed and accordingly, the same is dismissed.

Miscellaneous applications pending, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 17th February, 2026.

YNK THE HON'BLE SRI JUSTICE K. LAKSHMAN AND THE HON'BLE SRI JUSTICE
B.R.MADHUSUDHAN RAO FAMILY COURT APPEAL No.215 of 2017 17th February, 2026.

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